

Nightclub receives serious criticism: Lack of insight and deletion of CCTV recordings

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Decision

Private companies

Serious criticism

Complaint

CCTV surveillance

Right to insight

Fundamental principles

The Data Protection Agency has made a decision in a case where a citizen complained that a nightclub refused to grant him access to CCTV recordings. The Data Protection Agency has expressed serious criticism of the nightclub, which deleted the relevant recordings shortly after the citizen's request for access was denied.

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Summary

The Data Protection Agency has made a decision in a case where a citizen complained that Clemens Bar ApS had refused to grant him access to CCTV recordings from the nightclub, where he was present.

The CCTV surveillance at the nightclub was initiated to support police investigations and the handling of criminal cases and to create a sense of security among Clemens Bar's guests in general.

Clemens Bar had refused to comply with the request for access on the grounds that access to the CCTV recordings could compromise the safety of the nightclub and diminish the crime-fighting effect that is the purpose of the CCTV surveillance, as the placement of the cameras and blind spots could be revealed. Therefore, Clemens Bar only provides surveillance material upon request from the police in connection with the police's investigation of potential criminal cases.

Clemens Bar further referred to the fact that it would not be possible to blur the other individuals in the recordings without simultaneously blurring the complainant due to the large number of people appearing in the recordings.

Clemens Bar had retained the relevant CCTV recordings as a result of the complaint to the Data Protection Agency, but the nightclub had, due to human error, deleted the recordings before the agency had completed the processing of the case.

Data Protection Agency expresses serious criticism

The Data Protection Agency found that Clemens Bar could not refuse to grant the complainant access by referring to considerations of public interest.

The Data Protection Agency emphasized, among other things, that it was solely Clemens Bar that had made this assessment on its own initiative, and that this assessment was therefore not supported by a statement from the police or similar.

However, the Data Protection Agency found that there was insufficient basis to override Clemens Bar's assessment that the complainant's request for access to the relevant CCTV recordings could be denied, as the release of the recordings could infringe on the rights and freedoms of others.

In this context, the Data Protection Agency emphasized that it concerned a nightclub environment, and that approximately 150 individuals appeared in the recordings according to the information provided.

The Data Protection Agency also noted that the relevant recordings had been deleted, which meant that this issue could no longer be verified.

The Data Protection Agency therefore found that there was grounds to express serious criticism of Clemens Bar – by having deleted the relevant CCTV recordings – for not having handled the complainant's request in accordance with the fundamental principle of legality, fairness, and transparency.

Decision

The Data Protection Agency hereby returns to the case, where the complainant on April 26, 2023, complained to the agency that Clemens Bar ApS had not complied with his request for access to

CCTV recordings.

2023

1. Decision

After reviewing the case, the Data Protection Agency finds that there is not fully sufficient basis to override Clemens Bar's assessment that the complainant's request for access to the relevant CCTV recordings could be denied because the release of the recordings would infringe on the rights and freedoms of others, cf. Article 15, paragraph 4 of the Data Protection Regulation.

However, the Data Protection Agency finds that there are grounds to express serious criticism of Clemens Bar's handling of the complainant's request for access not being in accordance with the rules in Article 5, paragraph 1, letter a of the Data Protection Regulation.

Below follows a detailed review of the case and a justification for the Data Protection Agency's decision.

2. Case presentation

The complainant contacted the Data Protection Agency on April 26, 2023, with a complaint that Clemens Bar, by letter dated March 28, 2023 – referring to the Data Protection Act § 22, paragraph 2, numbers 3 and 4 – had refused to grant him access to CCTV recordings from the nightclub. The letter states, among other things:

“ ...

The general right to data access, cf. Article 15 of the GDPR

As a data subject, your right to data access is grounded in Article 15 of the GDPR, which specifies your rights regarding the provision of a copy of personal data about you, including a copy of video material. Clemens Bar fully acknowledges your fundamental right of access.

In this context, we must refer to the Data Protection Agency and their decision in journal number 2018-831-0004, where the agency in a specific case concerning the clarification of events related to property damage finds the responsible party liable for the provision of...

****Video Material, Including the Obligation to Properly Blur Third Party Individuals Appearing in the Video Material****

It is noted that an obligation is placed upon us as the obligated party to properly blur third party individuals who may appear in the video material. However, since the TV surveillance at Clemens Bar is not set up at our own initiative, as seen in the aforementioned decision from the Data Protection Agency, but rather solely as a result of an order from a public authority in relation to crime prevention, we have further investigated whether there are other interests that may override the right of access to information.

****Exception to the Right of Data Access, cf. Section 22 of the Data Processing Act****

We refer to the exception in Section 22 of the Data Processing Act, where this provision establishes the extent to which the data controller may refrain from granting the data subject the right to access. It is seen in the legislative materials for this exception that in weighing an exception to the right of access under Article 15 of the Regulation, on one hand, the data subject's interest in gaining knowledge of the information is considered, and on the other hand, we as the data controller are obligated to consider the specific risks associated with complying with the right of access in each individual case. The restriction on the data subject's access to be informed of the information mentioned in Article 15 of the Regulation can, according to the provision, only occur based on a concrete weighing of the opposing interests.

Clemens Bar must assert here that the purpose of the TV surveillance in our nightclub is solely to prevent or clarify criminal acts of any kind. There are no other purposes than crime prevention. In this context, we can inform you that the TV surveillance is based on a legal obligation established out of consideration for the safety of the establishment. The order for TV surveillance has been issued by a public authority.

It is also part of our assessment that the TV surveillance is continuously provided to the police, and that the material is frequently used in courts for evidence in relation to crime prevention purposes

concerning, among other things, violence, theft, drugs, and weapons.

It must thus be asserted that access to TV surveillance recordings could reveal the placement of cameras and any blind spots, and that there is therefore a real risk of compromising the safety at Clemens Bar and thus actually diminishing the crime prevention effect of the order for video surveillance issued by a public authority.

It appears from Section 22, subsection 2, numbers 3 and 4 of the Data Protection Act, among other things, that an exception from Article 15 of the Regulation can be made if the data subject's interest in gaining knowledge of the information is found to yield to compelling considerations of public interest, including considerations for public safety and prevention, investigation, disclosure, or prosecution of criminal acts or enforcement of criminal sanctions, including protection against public safety.

The Data Protection Agency presents in this context, respectively, in case number 2018-832-0009 and case number 2020-831-0028, specific decisions regarding refusals of the right of access. Both of these decisions are seen to have high precedential value in relation to the present request.

****Decision on Request for Data Access****

Clemens Bar has, after a specific assessment, found that the consideration for you as the data subject in this specific case must yield to compelling considerations of public interest, including considerations for public safety and prevention, investigation, disclosure, or prosecution of criminal acts or enforcement of criminal sanctions, including protection against public safety.

We therefore find ourselves compelled to reject your request for access to your records.

In our decision, we have emphasized that access to the TV surveillance recordings could reveal the placement of cameras and any blind spots, which poses a risk of compromising the safety at Clemens Bar. It is part of our assessment that access to surveillance footage both inside and outside the establishment is likely to compromise the safety of guests and staff, as it would, among other things, reveal the placement of surveillance equipment and blind spots, thereby making the surveillance counterproductive and hindering its crime prevention purpose.

We have also emphasized that you did not provide a specific justification for your interest in gaining access, for example, by indicating that all or part of the video material would show a matter of particular significance, such as property damage, personal injury, or financial loss. You thus wish solely to gain insight into your own behavior.

On this basis, it should be noted that Clemens Bar finds it reasonable to deny the request for data access, as on one hand, there does not appear to be a particular consideration that applies to the interest in gaining access to the video material – and on the other hand, we assess that your right of access in this specific case should yield to compelling considerations of safety, as this involves a larger nightclub where many people will be gathered in a limited space, and where various types of crime can regularly occur, thereby potentially exposing guests to significant danger.

Furthermore, it follows from the order for TV surveillance according to the license for Clemens Bar that the surveillance has been imposed by the Licensing Board for the sake of crime prevention, and therefore, to fulfill the purpose of the surveillance, efforts have been made to place surveillance equipment as discreetly or hidden as possible. By granting you the desired access to the TV surveillance, this consideration would be compromised in a decisive manner...

Clemens Bar simultaneously confirmed that the nightclub continued to possess the CCTV recordings and that the material would be retained as long as the case regarding access to it was ongoing with the Data Protection Agency. On July 7, 2023, the Data Protection Agency forwarded the complaint to Clemens Bar, allowing the bar to respond to the inquiry again in a letter to the complainant, including in light of the agency's practice. On July 13, 2023, DAHL Law Firm (hereinafter 'DAHL') – on behalf of Clemens Bar – referred to the previous justification and again refused to grant access to the CCTV recordings. On July 14, 2023, the complainant filed another complaint with the Data Protection Agency, in connection with which the agency received two statements from DAHL Law Firm.

2.1. Complainant's Remarks

The complainant has generally stated that he requested access to the relevant CCTV recordings to clarify whether a violation of Section 244 of the Penal Code had occurred in connection with a doorman escorting him out of the nightclub.

2.2. Clemens Bar's Remarks

DAHL has provided comments on the case on behalf of Clemens Bar. DAHL has generally stated that Clemens Bar is not obligated to disclose the relevant CCTV recordings to the complainant due to overriding considerations for public safety and the prevention, investigation, detection, and prosecution of criminal offenses, cf. the Data Protection Act § 22, subsection 2, nos. 3 and 4, as well as for the protection of the rights and freedoms of others, cf. the General Data Protection Regulation Article 15, subsection 4, and the Data Protection Act § 22, subsection 2, no. 9. DAHL has stated that Clemens Bar conducts CCTV surveillance as it is mandated to do so by the Licensing Board according to the board's alcohol license for the nightclub. The CCTV surveillance is conducted following instructions from the police. The purpose of the CCTV surveillance is to ensure public safety and to prevent, investigate, detect, and prosecute criminal offenses. To fulfill the purpose of the CCTV surveillance, efforts are made to place the CCTV equipment as discreetly and hidden as possible. DAHL has stated in this regard that access to the surveillance material could reveal the locations of cameras and any blind spots, which would pose a real risk of compromising the safety at Clemens Bar and diminish the crime prevention effect that is the purpose of the CCTV surveillance. The CCTV surveillance at the nightclub has been initiated to support the police's investigation and handling of criminal cases and to create a sense of security for Clemens Bar's guests in general. When it comes to nightclubs, especially during peak times, many intoxicated individuals are gathered in a limited space over an entire evening and night, and there will be loud music and alcohol, which can quickly lead to disturbances and chaos. It is assumed that these special circumstances for nightclubs are also the reason why Clemens Bar is mandated to have CCTV surveillance in the first place. It is therefore assessed that the purpose of the CCTV surveillance would be undermined if access to the recordings from the surveillance were granted. To support this, DAHL has referred to the Data Protection Agency's cases regarding Metro Service (2018-832-0009) and Blue Water Arena in Esbjerg (2020-832-0028), where the agency found that in the specific cases it was justified to reject the complainant's request for access, as the complainant's interest in gaining access had to yield to overriding considerations for public safety. DAHL further stated that Clemens Bar only discloses surveillance material upon request from the police in connection with the police's investigation of potential criminal cases. Clemens Bar's purpose with the CCTV surveillance is to fulfill the mandate in the license, while the police have a significantly greater interest in the CCTV surveillance itself, as it is necessary for the police's investigative work. Disclosure of any CCTV material to parties other than the police should therefore occur at the request of the police's assessment. DAHL has also stated that the CCTV recordings from the relevant period, which the complainant wishes to access, show approximately 150 individuals, and therefore it would not be possible to blur the other registered individuals from the recordings without also blurring the complainant. The same applies to the provision of still images. For this reason alone, Clemens Bar cannot grant access to the CCTV recordings. Finally, DAHL has stated that Clemens Bar no longer possesses the relevant CCTV recordings, which is due to a regrettable human error on the part of the nightclub. There is no backup of the surveillance material, and it is not possible to reconstruct the material.

3. Justification for the Data Protection Agency's Decision

3.1

The Data Protection Agency assumes that the complainant was visible in the CCTV recordings from Clemens Bar in question. It follows from the General Data Protection Regulation Article 15, subsection 3, that the data controller must provide a copy of the personal data being processed. The starting point is therefore that the data subject should receive a copy of the personal data processed about them. If personal data is processed as part of CCTV surveillance, the data subject should therefore – in connection with the response to a request for access – generally receive a copy of the recordings (including any audio recordings) in which the data subject appears. However, the General Data

Protection Regulation Article 15 does not apply if one of the exceptions in...

****Section 22 of the Data Protection Act applies.****

An exception from the provisions of Article 15 of the Data Protection Regulation may thus be made in accordance with Section 22, subsection 2 of the Data Protection Act, if the registered person's interest in gaining knowledge of the information is deemed to be outweighed by decisive considerations of public interest, including in particular:

- public safety,
- prevention, investigation, detection, or prosecution of criminal offenses or enforcement of criminal sanctions, including protection against and prevention of threats to public safety,
- protection of the registered person's or others' rights and freedoms.

The right to receive a copy as referred to in Article 15, subsection 3 of the Data Protection Regulation must not infringe upon the rights or freedoms of others, cf. Article 15, subsection 4. If other registered individuals appear in the recordings, consideration must be given to them, among other things because the registered person requesting access is only entitled to receive information about themselves. If other individuals are present, they must be blurred.

If the individuals are positioned in such a way in some of the images that blurring/covering another person would practically also cover the image of the person requesting access, it is not actually possible to provide access to the image sequences where this may be the case. It may therefore also be necessary to split the video into smaller image sequences, which can then be provided.

****3.2.****

Clemens Bar has stated that the complainant does not have the right to access, because their interest in gaining knowledge of the information is deemed to be outweighed by decisive considerations of public interest, including the public interests mentioned in Section 22, subsections 3, 4, and 9 of the Data Protection Act.

In this regard, Clemens Bar has stated that access to the surveillance material could reveal the placement of cameras and any blind spots, and that this would pose a real risk of compromising security at Clemens Bar and diminish the crime-fighting effect, which is the purpose of the CCTV surveillance.

The Data Protection Authority does not find that Clemens Bar could, on that basis, refuse to grant the complainant access. The Data Protection Authority has emphasized that it is solely Clemens Bar that has independently made this assessment, and that this assessment is therefore not supported by a statement from the police or similar.

The Data Protection Authority notes in this context that the data controller in the case concerning Blue Water Arena in Esbjerg (2020-832-0028) had reportedly been in dialogue with the National Police regarding the security implications of disclosing CCTV recordings.

The Data Protection Authority has also emphasized that this case differs from the cases concerning Metro Service (2018-832-0009) and Blue Water Arena in Esbjerg (2020-832-0028), in that the number of people who frequent Clemens Bar daily is significantly lower. Thus, it is not every security consideration that can justify an exception to the right of access, as there must be decisive considerations.

****3.3.****

Clemens Bar has further stated that it would not be possible to blur the other registered individuals from the recordings without also blurring the complainant, because approximately 150 individuals appear in the CCTV recordings from the relevant period that the complainant wishes to access.

After reviewing the case, the Data Protection Authority finds that there is not a fully sufficient basis to set aside Clemens Bar's assessment that the complainant's request for access to the relevant CCTV recordings could be refused because disclosing the recordings would infringe upon the rights and freedoms of others, cf. Article 15, subsection 4 of the Data Protection Regulation.

In this context, the Data Protection Authority has emphasized that this concerns a nightclub environment, and that approximately 150 individuals were present according to the information provided. The Data Protection Authority must also note that the relevant recordings have been deleted,

so this question can no longer be verified.

****3.4.****

The Data Protection Authority therefore also finds that Clemens Bar – by having deleted the relevant CCTV recordings – has not handled the complainant's request for access in accordance with the rules in Article 5, subsection 1, letter a of the Data Protection Regulation, which gives the authority reason to express serious criticism.

It follows from Article 5, subsection 1, letter a of the Data Protection Regulation that personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency").

When a data subject has requested access to information about themselves and thereby activated the exercise of their rights under Article 15, and the data controller does not comply with the request, then the data controller – in the opinion of the Data Protection Authority – is generally obliged to ensure that the data subject can exercise their rights under Section 39 of the Data Protection Act and Article 79 of the Data Protection Regulation.

The data subject must thus generally have the opportunity to exercise their right to complain about the failure to meet the request to the Data Protection Authority, cf. Section 39 of the Data Protection Act, or bring the matter before a court, cf. Article 79 of the Data Protection Regulation, with a view to...

to order the data controller to comply with the data subject's request.

It is the opinion of the Data Protection Agency that it is in violation of the principle of lawfulness, fairness, and transparency in Article 5, paragraph 1, letter a of the Data Protection Regulation, if the data controller deletes information about the data subject in close connection with the rejection of the data subject's request for access, as this would improperly prevent the data subject from having the opportunity to verify whether the data subject has the right to access the information, through the Data Protection Agency and the courts.

It is therefore the assessment of the Data Protection Agency that Clemens Bar, by deleting the CCTV recordings, improperly prevented the complainant from having the opportunity to verify whether he had the right to access the information through the Data Protection Agency or the courts, with the possibility of issuing Clemens Bar an order to comply with the complainant's request.

[1] Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons in relation to the processing of personal data and on the free exchange of such data and repealing Directive 95/46/EC (General Data Protection Regulation).